

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	P – Strategies to Empower People (STEP) Program
	Section No./Name	P-500-STEP Sanctions/Good Cause
	Document No./Name	P-570-STEP Curing the Sanction
	Effective Date	January 1, 2021

I. STATEMENT OF POLICY

A work-eligible recipient who has been sanctioned for failure to comply with STEP requirements may cure their STEP sanction by demonstrating and verifying that their failure to comply has ceased.

II. PROCEDURES

To end the failure to comply, this individual must:

- Be found to have a good cause reason,
- Indicate a willingness to comply when there is no available placement or adequate supportive services, or
- Satisfactorily comply with assigned program activities or requirements (assessment, CSE or drug testing compliance, etc.) as specified on previously-completed Family Success Agreement (FSA).

Note: The *FSA must be updated at least every six months. If a sanctioned individual applies for benefits and it has been more than six months since a FSA been completed, a new FSA ** must be completed within one week of certification.

A *FSA must be completed before support services can be authorized and before hours of participation can be entered in LITE **.

- Satisfactorily participate for two weeks in the previously-assigned program activity or an approved alternate activity, or
- Meet one of the following exemptions:
 - FITAP families including a parent who is providing care for a disabled family member living in the home as long as medical documentation is provided to support the need for the parent to remain in the home to care for the disabled family member.
 - FITAP families that do not have an adult parent, an adult caretaker relative, or a minor parent head of household included in the FITAP certification because that individual receives SSI or is an alien who is ineligible due to immigration status.

All available supportive services should be provided while the sanctioned individual is attempting to cure his sanction by ending the failure to comply.

If the sanctioned individual is attempting to cure his sanction during the application period by satisfactorily participating for a two-week period and that two-week period cannot be completed prior

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to the end of the 30-day application period, the FITAP application may pend until the end of the two-week period in order to determine if the failure to comply has ceased.

- If the sanctioned individual is sent an appointment * from the STEP Coach to cure his STEP sanction and does not keep the scheduled appointment but contacts the department to reschedule the appointment, the appointment must be rescheduled and a new appointment letter must be sent even if sufficient mail time is not available.
 - If the sanctioned individual misses the rescheduled appointment but contacts the department to reschedule the appointment again, the appointment must be rescheduled as many times as the sanctioned individual contacts the department timely within the 30-day application period. The appointment may not be scheduled for a date after the 30th day.
 - If the sanctioned individual misses the rescheduled appointment but does not contact the department timely to reschedule another appointment, the FITAP application will ** be rejected *** * at the end of the 30-day application period. **

While working with the client to cure the STEP sanction, the * STEP Coach should develop an understanding of the underlying reasons of the non-compliance. In exploring possible methods to cure the sanction and prevent future sanctions, the STEP Coach ** should:

- determine if a new activity that better suits the client's interest and needs is needed,

- help the client to overcome identified barriers to participation,
- determine a plan to allow the client to move forward, and
- determine a plan for addressing other potential barriers before they occur.

During the attempt to cure the sanction, it may be necessary to * amend the FSA if non-compliance resulted from an activity that was not appropriate for the individual. All attempts to cure the sanction must be documented in Person Notes **.

III. FORMS AND INSTRUCTIONS

[STEP 6 Form](#) / [Instructions](#) Family Success Agreement

IV. REFERENCES

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Code of Federal Regulations, Title 45: [Parts 261, 262, 263, and 265](#)

[TANF Final Rule 2008](#)

[Act 58, 2003 Reg. Session](#)

[LAC 67:III.5717](#)